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Federal Funding Accountability and Transparency Act (FFATA) POLICY

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Enacted

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1. Objective

The objective of this policy is to compliance with 2 CFR 200 and the Federal Funding Accountability and Transparency Act (FFATA) (or Transparency Act - P.L.109-282, as amended by section 6202(a) of P.L. 110-252). FFATA requires all recipients of federal awards to report purchases of $30,000 and greater under federal contracts. The act requires the reported data be made available to the pubic via www.USASpending.gov.

2. Definitions

- **Federal awards** - include grants, cooperative agreements, contracts, purchase orders, task orders, and delivery orders.
- **First Tier Subawardee** - refers to the entity provided an award (i.e., subaward) directly from the Prime Awardee for the purposes of participating in the sponsored project.
- **Prime Awardee** - is the entity receiving the award from the Federal Government.
- **Subawards** - are defined as either subcontracts or grants-specific subawards.
    - **For grants**, a subaward means a legal instrument describing the performance of any portion of the substantive project or program for which you received the award and the prime recipient awards to an eligible subrecipient. For grants, the term "subaward" does not include procurement of property and services needed to carry out the project or program.
        - Prime recipient awards to an eligible sub-recipient; or
        - Sub-recipient at one tier awards to a sub-recipient at the next lower tier.
    - **For contracts**, a subaward means a subcontract awarded directly by a contractor to furnish supplies or services (including construction) for performance of a prime contract, but excludes supplier agreements with vendors, such as long-term arrangements for materials or supplies that would normally be applied to a contractor's general and administrative expenses or indirect cost.
- **Obligation date** - is the date that the subaward is fully executed.

3. Scope and Reporting Requirements

The FFATA reporting requirements apply to both U.S. and foreign based entities. The FFATA Subaward Reporting System (FSRS) is the reporting tool Federal prime awardees (i.e. prime contractors and prime grants recipients) use to capture and report subaward and executive compensation data regarding their first tier subawards to meet the FFATA reporting requirements. Prime contract awardees will report against sub-contracts awarded and prime grant awardees will report against sub-grants awarded.

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The reporting thresholds for whether contracts or grants are susceptible to FFATA are found below.

1. ***Subrecipient Reporting***

All subawards from October 1, 2015 forward, if the contract value is greater than or equal to $30,000. Modifications or increases in obligation amounts should be reported incrementally in accordance with the obligation date.

2. ***Total Compensation and Names of Top Five Executives***

A prime awardee is required to report the names and total compensation of the five most highly compensated officers of the prime or a subaward if:

a. More than 80% of annual gross revenues from the Federal government, and those revenues are greater than $25M annually **and**
b. Compensation information is not already available through reporting to the Securities Exchange Act of 1934 (SEC) or section 6104 of the Internal Revenue Code of 1986.

Award Modifications:

If the initial award is below $30,000 but subsequent grant modifications result in a total award equal to or over $30,000, the award will be subject to the reporting requirements, as of the date the award exceeds $30,000.

If the initial award equals or exceeds $30,000 but funding is subsequently de-obligated such that the total award amount falls below $30,000, the award continues to be subject to the reporting requirements of FFATA.

4. FFATA Data Requirements

The following data is required from subrecipients for all grants, contracts, and vendor purchases on contracts that meet the FFATA requirements:

1) Name of entity receiving award
2) Amount of award
3) Funding agency
4) NAICS code for contracts / CFDA program number for grants
5) Program source
6) Award title descriptive of the purpose of the funding action

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7) Location of the entity (including congressional district if in the U.S.). FSRS uses http://www.zip-codes.com/ as the source of the Congressional District look-up table. The data set includes the 111th Congressional District alignment to the Zip+4 value.
8) Place of performance (including congressional district if in the U.S.). FSRS uses http://www.zip-codes.com/ as the source of the Congressional District look-up table. The data set includes the 111th Congressional District alignment to the Zip+4 value.
9) System for Award Management (SAM) Registration; and
10) Unique Entity Identifier (UEI)

If applicable:

11) Total compensation and names of top five executives, if…
    a. More than 80% of annual gross revenues from the Federal government, and those revenues are greater than $25M annually **and**
    b. Compensation information is not already available through reporting to the SEC.

Classified information is EXEMPT from the prime and subaward reporting requirement as are contracts with individuals.

5. Reporting Timeline for Prime Awardees

Prime awardees will report using FSRS. The prime awardee is required to file a FFATA subaward report by the end of the month following the month in which the prime recipient awards or obligates any subaward greater than or equal to $30,000.

Similarly for executive compensation reporting, if applicable, the prime awardee must report its own executive compensation data or that of its subawardee, by the end of the month following the month the award or obligation was made.

Example 1:

- Prime awards subaward on October 1, 2020 and another on October 31, 2020
- Prime must report both subaward information by November 30, 2020

6. Partners FFATA Reporting Process

Partners of the Americas' (Partners) will follow the below procedure for filing monthly FFATA reports.

1. The Director of Grants and Contracts (DGC) in Partners Contracts department will review all contracts and cover sheets submission weekly. The DGC will determine if the contract needs to be reported under FFATA.

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2. If reporting is required, the DGC will record all the subaward information on the FFATA Excel Tracker.
    a. If additional information is needed from the Program team, the DGC will reach out to the appropriate program point of contact.
    b. If the recipient does not have a Unique Entity Identifier (UEI), then the DGC will not approve the cover sheet and contract until an active UEI number can be provided.
3. On the last business day of each month, the DGC will submit the FFATA Excel Tracker to the Controller and CFO for review and approval.
4. The Controller and/or CFO will provide approval of the new subaward to be reported under FFATA by the 10th day of the following month, or business day prior if the 10th falls on a week or holiday.
5. Once approval is received, the DGC will enter the new FFATA subawards into the FSRS system.
6. After each new subaward is submitted to the FFATA database, the DGC will print the PDF confirmation page and save it to the Contracts & Agreements folder of the subawardee on SharePoint.
7. The prior month's FFATA reporting will be completed by the 15th of the following month by the DGC.

Note: All subawards whether HQ or field office based must be reported for FFATA.

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